

Deliverables and Requirements to Accompany NQRP Statement of Objectives

- i. Transition-In Plan: To prevent a break in representation for NQRP respondents, the Contractor must create a comprehensive transition-in plan and submit a copy with its proposal. The plan must detail steps for ensuring seamless representation for all pending *Franco* NQRP Cases and Nationwide Policy NQRP Cases that carry over into the current award. The plan must also include steps for synthesizing all relevant case data, etc. to ensure there are no gaps in reporting. **NQRP SOO 5.0**
- ii. Continuous Legal Representation: The Contractor must provide continuous legal representation in covered immigration proceedings to NQRP Respondents as identified by the agency. **NQRP SOO 9.0** There can be no break in representation. Representation must be provided according to the following:
 - a. *Franco* NQRP Respondents: Continuous representation must be provided until the issuance of a final administrative order or determination in covered immigration proceedings, regardless of the Respondent's detention status. **NQRP SOO 13.0**
 - b. Nationwide Policy NQRP Respondents: Continuous representation must be provided until the issuance of a final administrative order or determination in covered immigration proceedings *or* until ninety (90) calendar days from the Respondent's release from DHS custody, whichever is earliest. **NQRP SOO 13.0**
- iii. Limitations on Withdrawal: The Contractor must ensure that any withdrawal request on the part of a Qualified Representative is filed as part of a substitution of counsel by another Qualified Representative to ensure the NQRP Respondent is continuously represented. The Qualified Representative must not seek to withdraw solely because of the NQRP Respondent's lack of capacity and/or refusal to consent to representation. The Contractor must notify the COR in advance of the filing of a motion to withdraw. **NQRP SOO 11.0**
- iv. Other Related Services: The Contractor must provide other related services to NQRP Respondents which are reasonably necessary to complete their covered immigration proceedings. Related services include but are not limited to: 1) development of a "release plan" from DHS custody; 2) provision of expert witnesses, as necessary; 3) interpretation and translation services; 4) facilitation of medical and social services; 5) coordination of housing and transportation; and 6) communication with family members. **NQRP SOO 9.0**
- v. Entry of Appearance: The Contractor must ensure that a Qualified Representative enters an appearance as the practitioner of record via the completion and filing of Form EOIR-

28 (before the Immigration Court) or Form EOIR-27 (before the Board of Immigration Appeals) for each NQRP case identified by the agency. **NQRP SOO 11.0** The Contractor must ensure that each Qualified Representative enters an appearance within the mandated deadline, as set forth below:

- a. **35 calendar days** if the finding of incompetence is made via a Judicial Competency Inquiry.
- b. **21 calendar days** if the finding of incompetence is made on behalf of a *Franco* NQRP Respondent after a Forensic Competency Evaluation was ordered.
- c. **15 calendar days** if the finding of incompetence is made via either of the methods above on behalf of a *Franco* NQRP Respondent who has been detained in DHS custody 180 days or more.

Note: Contract funds may not be used to provide legal representation and other related services to an NQRP Respondent in covered immigration proceedings where there is an entry of appearance or substitution of counsel by another legal representative not provided through this award.

- vi. *Franco* Bond Hearings: The Contractor must ensure that a Qualified Representative appears at mandatory bond hearings on behalf of *Franco* NQRP Respondents who have been detained in DHS custody 180 days or more. These bond hearings must occur within **15 calendar days** of the finding of incompetence. **NQRP SOO 11.0**
- vii. Program Operation Plans: The Contractor must provide a Program Operation Plan for each current or prospective NQRP Qualified Representative organization intended to provide legal representation and other related services. For *Franco* NQRP Respondents, the plan must include a proposed structure to provide continuous legal representation and other related services to Respondents released from DHS custody. **NQRP SOO 14.0**
- viii. General Data Requests: The Contractor must allow the agency full access to data collected for the performance of the required legal representation and other related services, not subject to any privilege or otherwise protected from disclosure under the law. The agency can request ad hoc reports with ten (10) business days of notice to the Contractor unless the COR approves an extension.
- ix. Monthly Reports: The Contractor must collect and provide comprehensive data regarding the NQRP cases for which it is providing representation. The Contractor must submit

monthly program management progress reports to the COR. Among other things, the monthly reports must include the alien registration number for each NQRP case pending at the time of report submission. **NQRP SOO 14.0**

- x. Training: The Contractor must develop and implement all necessary training to equip Qualified Representatives to provide the required legal representation and other related services to NQRP Respondents. **NQRP SOO 14.0**
- xi. Communication: The Contractor must timely answer questions regarding scheduling, payment, and other program logistics. Answers should be rendered in a professional manner to ensure efficient facilitation of the program. The Contractor must promptly respond to all communications from the agency within two (2) federal government business days. The Contractor may be required to participate in conference calls with the COR or COR-designee to discuss program performance as needed.
- xii. Invoices and Payment: The Contractor must render invoices monthly in electronic format to the COR at the email address specified in each task order. Each invoice must include: 1) name and address of the service provider; 2) invoice date and number; 3) contract line item number and, if applicable, the order number; 4) description, quantity, unit of measure, unit price and extended price of the items delivered; 5) terms of any discount for prompt payment offered; 6) name and address of official to whom payment is to be sent; 7) name, title, and phone number of person to notify in event of defective invoice; 8) Taxpayer Identification Number (TIN); and 9) Duns number (as applicable).
- xiii. Transition-Out Plan: To prevent a break in representation for NQRP respondents, the Contractor must create a comprehensive transition-out plan and submit a copy ninety (90) days prior to the expiration of the award. The plan must detail steps for ensuring seamless representation for all pending *Franco* NQRP Cases and Nationwide Policy NQRP Cases that will carry over into the next award. The plan must also include steps for transferring all relevant case data, etc. to the incoming contractor and/or the agency to ensure there are no gaps in reporting. **NQRP SOO 5.0**